

SENATE BILL 1070

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 28
and Title 40, Chapter 2, relative to commencement
of proceedings.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-2-101(q)(3)(B), is amended by
deleting the subdivision and substituting:

(B)

(i) For offenses occurring on or after July 1, 2019, but before July 1, 2025, in order to commence prosecution for an offense listed in subdivision (q)(1) under the circumstances described in subdivision (q)(3)(A), at a date that is more than twenty-five (25) years from the date the victim becomes eighteen (18) years of age, the prosecution is required to offer admissible and credible evidence corroborating the allegations or similar acts by the defendant.

(ii) For offenses occurring on or after July 1, 2025, in order to commence prosecution for an offense listed in subdivision (q)(1) under the circumstances described in subdivision (q)(3)(A), at a date that is more than thirty (30) years from the date the victim becomes eighteen (18) years of age, the prosecution is required to offer admissible and credible evidence corroborating the allegations or similar acts by the defendant.

SECTION 2. Tennessee Code Annotated, Section 40-2-101(q)(4), is amended by
deleting the subdivision and substituting:

(4) This subsection (q) applies to offenses:

(A) Committed on or after July 1, 2019, except as provided in subdivision (q)(3)(B); or

(B) Committed prior to July 1, 2019, unless prosecution for the offense is barred because the applicable time limitation set out in this section for prosecution of the offense expired prior to July 1, 2019.

SECTION 3. Tennessee Code Annotated, Section 28-3-116(b)(2), is amended by deleting the language "on or after July 1, 2019" and substituting "on or after July 1, 2019, but before July 1, 2025".

SECTION 4. Tennessee Code Annotated, Section 28-3-116(b), is amended by adding the following new subdivision:

(3) For child sexual abuse that occurred on or after July 1, 2025, within the later of:

(A) Thirty (30) years from the date the person becomes eighteen (18) years of age; or

(B) If the injury or illness was not discovered at the time of the abuse, within three (3) years from the time of discovery of the abuse by the injured person.

SECTION 5. This act takes effect July 1, 2025, the public welfare requiring it.